

1 ENGROSSED HOUSE
2 BILL NO. 3587

By: Harris of the House

3 and

4 Gollihare of the Senate
5
6
7

8 An Act relating to mental health; amending 43A O.S.
9 2021, Section 5-416, which relates to alternatives to
10 hospitalization; authorizing court-ordered outpatient
11 treatment; decreasing time period for reviewing
12 treatment needs; providing status hearings for
13 reviewing treatment needs; requiring notification to
14 parties; authorizing certain persons to request
15 status hearings; directing district attorneys to
16 present certain treatment plans; providing guidelines
17 for developing treatment plans; affirming rights of
18 persons in court-ordered outpatient treatment;
19 prohibiting courts from ordering outpatient
20 treatment; providing exceptions; allowing certain
21 persons to self-administer psychotropic drugs;
22 prohibiting forced administration of medications;
23 directing facilities to petition the court when
24 changing treatment plans; clarifying certain defined
phrase; requiring consideration of health directives
when developing treatment plans; and providing an
effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43A O.S. 2021, Section 5-416, is
amended to read as follows:

1 Section 5-416. A. The court, in considering a commitment
2 petition filed under Section 5-410 of this title, shall not order
3 hospitalization without a thorough consideration of available
4 treatment alternatives to hospitalization, or without addressing the
5 competency of the consumer to consent to or refuse the treatment
6 that is ordered including, but not limited to, the rights of the
7 consumer:

8 1. To be heard concerning the treatment of the consumer; and

9 2. To refuse medications.

10 B. 1. If the court, in considering a commitment petition filed
11 under Section 5-410 of this title, finds that a program other than
12 hospitalization, including an assisted outpatient treatment program
13 or court-ordered outpatient treatment, is adequate to meet the
14 treatment needs of the individual and is sufficient to prevent
15 injury to the individual or to others, the court may order the
16 individual to receive whatever treatment other than hospitalization
17 is appropriate for a period set by the court; provided, the court
18 may only order assisted outpatient treatment if the individual meets
19 the criteria set forth in Section 1-103 of this title and in
20 subsection F of this section. During this time the court:

21 a. shall have continuing jurisdiction over the individual
22 as a person requiring treatment or an assisted
23 outpatient, and
24

1 b. shall periodically, no less often than ~~annually~~ every
2 ninety (90) days, review the treatment needs of the
3 individual and determine whether or not to continue,
4 discontinue, or modify the treatment. This review may
5 include a status hearing with parties to be notified
6 no later than seventy-two (72) hours before the
7 hearing is scheduled. An individual under a court-
8 ordered outpatient treatment plan or parties listed in
9 Section 5-410 of this title may request a status
10 hearing.

11 2. If at any time it comes to the attention of the court from a
12 person competent to file or request the filing of a petition,
13 pursuant to subsection A of Section 5-410 of this title, that the
14 individual ordered to undergo a program of alternative treatment to
15 hospitalization, such as court-ordered outpatient treatment, is not
16 complying with the order or that the alternative treatment program
17 has not been sufficient to prevent harm or injury which the
18 individual may be inflicting upon himself or herself or others, the
19 court may order the person to show cause why the court should not:

20 a. implement other alternatives to hospitalization,
21 modify or rescind the original order or direct the
22 individual to undergo another program of alternative
23 treatment, if necessary and appropriate, based on
24 written findings of the court, or

1 b. enter an order of admission pursuant to the provisions
2 of this title, directing that the person be committed
3 to inpatient treatment and, if the individual refuses
4 to comply with this order of inpatient treatment, the
5 court may direct a peace officer to take the
6 individual into protective custody and transport the
7 person to a public or private facility designated by
8 the court.

9 For the purposes of court-ordered outpatient treatment, the
10 district attorney shall present a treatment plan developed by a
11 community mental health center certified by the Department of Mental
12 Health and Substance Abuse Services pursuant to Section 3-306.1 of
13 this title and operating in the county where the petition has been
14 filed. Such a treatment plan shall be developed in coordination
15 with the person under the outpatient treatment order along with any
16 advocates or legal guardians and the treatment team of the person.
17 Any material changes to the treatment plan shall be approved by the
18 court.

19 3. The court shall give notice to the person ordered to show
20 cause and hold the hearing within seventy-two (72) hours of the
21 notice. The person ordered to undergo a program of alternative
22 treatment shall not be detained in emergency detention pending the
23 show cause hearing unless, prior to the emergency detention, the
24

1 person has undergone an initial examination and a determination is
2 made that emergency detention is warranted.

3 4. If an order of alternative treatment will expire without
4 further review by the court and it is believed that the individual
5 continues to require treatment, a person competent to file or
6 request the filing of a petition, pursuant to subsection A of
7 Section 5-410 of this title, may file or request the district
8 attorney file either an application for an extension of the court's
9 previous order or an entirely new petition for a determination that
10 the individual is a person requiring treatment, including court-
11 ordered outpatient treatment, or an assisted outpatient.

12 5. A hearing on the application or petition filed pursuant to
13 paragraph 4 of this subsection shall be held within ten (10) days
14 after the application or petition is filed, unless the court extends
15 the time for good cause. In setting the matter for hearing, the
16 court shall consider whether or not the prior orders of the court
17 will expire during the pendency of the hearing and shall make
18 appropriate orders to protect the interests of the individual who is
19 the subject of the hearing.

20 C. Prior to ordering the inpatient treatment of an individual,
21 the court shall inquire into the adequacy of treatment to be
22 provided to the individual by the facility, and inpatient treatment
23 shall not be ordered unless the facility in which the individual is
24

1 to be treated can provide such person with treatment which is
2 adequate and appropriate to such person's condition.

3 D. Nothing in this section shall prohibit the Department of
4 Mental Health and Substance Abuse Services or the facility or
5 program providing the alternative treatment from discharging a
6 person admitted pursuant to this section, at a time prior to the
7 expiration of the period of alternative treatment, or any extension
8 thereof. The facility or program providing the alternative
9 treatment shall file a report with the court outlining the
10 disposition of each person admitted pursuant to this section within
11 forty-eight (48) hours after discharge.

12 E. Notice of any proceedings pursuant to this section shall be
13 given to the person, the person's guardian, the person's attorney,
14 and the person filing the petition or application. In cases of
15 court-ordered outpatient treatment, the person shall be afforded all
16 the rights enumerated in Section 5-411 of this title.

17 F. If the petition alleges the person to be an assisted
18 outpatient as provided in Section 7 5-410 of this ~~act~~ title, the
19 court shall not order assisted outpatient treatment unless the
20 petitioning licensed mental health professional develops and
21 provides to the court a proposed written treatment plan. All
22 service providers included in the treatment plan shall be notified
23 regarding their inclusion in the written treatment plan. Where
24 deemed advisable, the court may make a finding that a person is an

1 assisted outpatient and delay the treatment order until such time as
2 the treatment plan is provided to the court. Such plan shall be
3 provided to the court no later than the date set by the court
4 pursuant to subsection J of this section.

5 G. The licensed mental health professional who develops the
6 written treatment plan shall provide the following persons with an
7 opportunity to actively participate in the development of such plan:

- 8 1. The assisted outpatient;
- 9 2. The treating physician, if any;
- 10 3. The treatment advocate as defined in Section 1-109.1 of this
11 title, if any; and
- 12 4. An individual significant to the assisted outpatient,
13 including any relative, close friend or individual otherwise
14 concerned with the welfare of the assisted outpatient, upon the
15 request of the assisted outpatient.

16 H. The licensed mental health professional shall make a
17 reasonable effort to gather relevant information for the development
18 of the treatment plan from a member of the assisted outpatient's
19 family or significant other. If the assisted outpatient has
20 executed an advance directive for mental health treatment, the
21 physician shall consider any directions included in such advance
22 directive for mental health treatment in developing the written
23 treatment plan.

1 I. The court shall not order assisted outpatient treatment or
2 court-ordered outpatient treatment unless the petitioner testifies
3 to explain the proposed written treatment plan; provided, the
4 parties may stipulate upon mutual consent that the petitioner need
5 not testify. The petitioner shall state facts which establish that
6 such treatment is the least restrictive alternative. If the
7 assisted outpatient has executed an advance directive for mental
8 health treatment, the licensed mental health professional shall
9 state the consideration given to any directions included in such
10 advance directive for mental health treatment in developing the
11 written treatment plan. Such testimony shall be given on the date
12 set by the court pursuant to subsection J of this section.

13 J. If the court has yet to be provided with a written treatment
14 plan at the time of the hearing in which the court finds a person to
15 be an assisted outpatient or a person eligible for court-ordered
16 outpatient treatment, the court shall order such treatment plan and
17 testimony no later than the third day, excluding Saturdays, Sundays
18 and holidays, immediately following the date of such hearing and
19 order; provided, the parties may stipulate upon mutual consent that
20 such testimony need not be provided. Upon receiving such plan and
21 any required testimony, the court may order assisted outpatient
22 treatment as provided in this section.

23 K. A court may order the patient to self-administer
24 psychotropic drugs or accept the administration of such drugs by

1 authorized personnel as part of an assisted outpatient treatment or
2 court-ordered outpatient treatment program. Such order may specify
3 the type and dosage range of such psychotropic drugs and such order
4 shall be effective for the duration of such assisted outpatient
5 treatment or court-ordered outpatient treatment. For the purposes
6 of court-ordered outpatient treatment, forcible administration of
7 medication shall not be permitted.

8 L. A copy of any court order for assisted outpatient treatment
9 shall be served personally, or by mail, facsimile or electronic
10 means, upon the assisted outpatient, the assisted outpatient
11 treatment program and all others entitled to notice under the
12 provisions of subsection D of Section 5-412 of this title.

13 M. The initial order for assisted outpatient treatment shall be
14 for a period of one (1) year. Within thirty (30) days prior to the
15 expiration of the order, a licensed mental health professional
16 employed by the Department of Mental Health and Substance Abuse
17 Services or employed by a community mental health center certified
18 by the Department pursuant to Section 3-306.1 of this title may file
19 a petition to extend the order of outpatient treatment. Notice
20 shall be given in accordance with Section 5-412 of this title. The
21 court shall hear the petition, review the treatment plan and
22 determine if the assisted outpatient continues to meet the criteria
23 for assisted outpatient treatment and such treatment is the least
24 restrictive alternative. If the court finds the assisted outpatient

1 treatment should continue, it will make such an order extending the
2 assisted treatment an additional year and order the treatment plan
3 updated as necessary. Subsequent extensions of the order may be
4 obtained in the same manner. If the court's disposition of the
5 motion does not occur prior to the expiration date of the current
6 order, the current order shall remain in effect for up to thirty
7 (30) additional days until such disposition.

8 N. In addition to any other right or remedy available by law
9 with respect to the order for assisted outpatient treatment, the
10 assisted outpatient or anyone acting on the assisted outpatient's
11 behalf may petition the court on notice to every facility providing
12 treatment pursuant to the assisted outpatient treatment order to
13 stay, vacate or modify the order.

14 O. Facilities providing treatment pursuant to the assisted
15 outpatient treatment order or court-ordered outpatient treatment
16 order shall petition the court for approval before instituting a
17 proposed material change in the assisted outpatient treatment plan
18 or court-ordered outpatient treatment order, unless such change is
19 authorized by the order of the court. Such petition shall be filed
20 on notice to the assisted outpatient or court-ordered person, any
21 treatment advocate designated by the assisted outpatient or court-
22 ordered person pursuant to this title, any attorney representing the
23 assisted outpatient or court-ordered person, and any guardian
24 appointed by the court to represent the assisted outpatient or

1 court-ordered person. Not later than five (5) days after receiving
2 such petition, excluding Saturdays, Sundays and holidays, the court
3 shall hold a hearing on the petition; provided, that if the assisted
4 outpatient or court-ordered person informs the court that he or she
5 agrees to the proposed material change, the court may approve such
6 change without a hearing. Nonmaterial changes may be instituted to
7 the assisted outpatient treatment plan or court-ordered outpatient
8 treatment plan without court approval. For the purposes of this
9 subsection, a material change is an addition or deletion of a
10 category of services to or from a current assisted outpatient
11 treatment plan or any deviation, without the consent of the assisted
12 ~~outpatient's~~ outpatient or consent of the court-ordered person, from
13 the terms of a current order relating to the administration of
14 psychotropic drugs.

15 P. Where, in the clinical judgment of a licensed mental health
16 professional:

- 17 1. The assisted outpatient has failed or refused to comply with
18 the assisted outpatient treatment;
- 19 2. Efforts were made to solicit compliance; and
- 20 3. Such assisted outpatient appears to be a person requiring
21 treatment,
22 the licensed mental health professional may cause the assisted
23 outpatient to be taken into protective custody pursuant to the
24 provisions of Sections 5-206 through 5-209 of this title or may

1 refer or initiate proceedings pursuant to Sections 5-410 through 5-
2 415 of this title for involuntary commitment to a hospital, or may
3 return the assisted outpatient to a facility providing treatment
4 pursuant to the assisted outpatient treatment plan to determine if
5 the assisted outpatient will comply with the treatment plan.

6 Failure or refusal to comply with assisted outpatient treatment
7 shall include, but not be limited to, a substantial failure to take
8 medication, to submit to blood testing or urinalysis where such is
9 part of the treatment plan, failure of such tests or failure to
10 receive treatment for alcohol or substance abuse if such is part of
11 the treatment plan.

12 Q. Failure to comply with an order of assisted outpatient
13 treatment or court-ordered outpatient treatment shall not be grounds
14 for involuntary civil commitment or a finding of contempt of court.

15 R. For the purposes of court-ordered outpatient treatment, the
16 mental health advanced directive or other applicable health
17 directive of the person shall be considered when developing a
18 treatment plan.

19 SECTION 2. This act shall become effective November 1, 2026.
20
21
22
23
24

1 Passed the House of Representatives the 16th day of March, 2026.

2
3 _____
4 Presiding Officer of the House
5 of Representatives

6 Passed the Senate the _____ day of _____, 2026.

7
8 _____
9 Presiding Officer of the Senate